

# **Pandurangappa S/O Patel Rangappa vs N B Dodda Rangappa S/O Patel Rangappa on 28 February, 2023**

**Author: N.S.Sanjay Gowda**

**Bench: N.S.Sanjay Gowda**

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 28TH DAY OF FEBRUARY 2023

BEFORE

THE HON'BLE MR.JUSTICE N.S.SANJAY GOWDA

R.F.A.No.1985/2006 (PAR)

BETWEEN:

1. PANDURANGAPPA,  
S/O PATEL RANGAPPA,  
AGED ABOUT 56 YEARS,  
SINCE DEAD BY HIS LRs.,
- 1(a) SMT.C.RATHNAMMA,  
W/O LATE N.R.PANDURANGAPPA,  
AGED ABOUT 58 YEARS,
- 1(b) SRI.N.R.RANGEGOWDA,  
AGED ABOUT 34 YEARS,  
S/O LATE PANDURANGAPPA,
- 1(c) SRI.N.P.DHANANJAYA,  
AGED ABOUT 32 YEARS,  
S/O LATE PANDURANGAPPA,
- 1(d) SRI. N.P.DAYANANDA GOWDA,  
AGED ABOUT 28 YEARS,  
S/O LATE PANDURANGAPPA,

A-1(a) TO A-1(d) ARE R/AT NANDIHALLI VILLAGE,  
PITLALI POST, HIRIYUR TALUK,  
CHITRADURGA DISTRICT.

- 1(e) SMT. N.P.RANGALAKSHMI,  
W/O SHIVARUDRAPPA,

AGED ABOUT 30 YEARS,  
R/AT BEERENAHALLI VILLAGE,

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HIRIYUR TALUK, CHITRADURGA DISTRICT.

2. N.R.RANGA SWAMY,  
S/O PATEL RANGAPPA,  
AGED ABOUT 52 YEARS,

3. SANNA RANGAPPA,  
S/O PATEL RANGAPPA,  
AGED ABOUT 46 YEARS,

ALL ARE AGRICULTURISTS AND  
R/O NANDIHALLI GOLLARAHATTI  
VILLAGE, KASABA HOBLI,  
HIRIYUR TALUK,  
PIN CODE - 572 144.

4. MEENAKSHAMMA,  
W/O LATE THIMMANNA,  
AGED ABOUT 34 YEARS,  
AGRICULTURIST,  
R/O NANDIHALLI VILLAGE,  
HIRIYUR TALUK,  
PIN CODE:572 144.

... APPELLANTS

(BY SRI.CHITHAPPA, ADVOCATE FOR A-1(a TO e),  
A-2 & A-3;  
SRI.JAGADEESH MUNDARAGI, ADVOCATE FOR A-4)

AND:

1. N.B.DODDA RANGAPPA,  
S/O PATEL RANGAPPA,  
AGED ABOUT 64 YEARS,  
AGRICULTURIST,  
R/O NANDIHALLI GOLLARAHATTI,  
KASABAHOBOLI, HIRIYUR TALUK,  
PIN CODE - 572 144.  
SINCE DEAD BY HIS LRs.,

1(a) PATHAMMA,

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W/O LATE DODDARANGAPPA,  
NOW AGED ABOUT 65 YEARS,

1(b) SATHYABHAMA,  
W/O VISHWANATHA,  
NOW AGED ABOUT 43 YEARS,

1(c) PUJAPPA N.D.,  
S/O LATE DODDARANGAPPA,  
NOW AGED ABOUT 38 YEARS,

1(d) KRISHNAMURTHY.D.  
S/O LATE DODDARANGAPPA,  
NOW AGED ABOUT 35 YEARS,

1(e) PUSPHALATHA,  
W/O KATAPPA,  
NOW AGED ABOUT 35 YEARS,

1(f) SRIRANGANATH,  
S/O LATE DODDARANGAPPA,  
NOW AGED ABOUT 33 YEARS,

ALL ARE R/AT NANDHIHALLI VILLAGE,  
KASABA HOBLI, PITLALI POST,  
HIRIYUR TALUK, CHITRADURGA DISTRICT.

2. GOPALA SWAMY,  
S/O PATEL RANGAPPA,  
AGED ABOUT 49 YEARS,  
BOTH ARE AGRICULTURISTS  
R/AT NANDIHALLI,  
GOLLARAHATTI, KASABA HOBLI,  
HIRIYUR TALUK, PINCODE - 572 144.

... RESPONDENTS

(BY SRI. SRUTI CHAGANTI, ADVOCATE FOR R-1(a TO f))  
R-2 IS SERVED

THIS APPEAL IS FILED UNDER SECTION 96 OF CPC  
AGAINST THE JUDGMENT AND DECREE DATED:30.06.2006

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PASSED IN O.S.No.93/2002 ON THE FILE OF THE I  
ADDITIONAL CIVIL JUDGE (SR. DN), CHITRADURGA,  
DECREEING THE SUIT FOR DECLARATION, PARTITION AND  
SEPARATE POSSESSION.

THIS APPEAL HAVING BEEN HEARD AND RESERVED  
FOR JUDGMENT ON 21.02.2023, COMING ON FOR  
PRONOUNCEMENT THIS DAY, THE COURT DELIVERED THE  
FOLLOWING:

JUDGMENT

1. N.B. Dodda Rangappa filed a suit for partition in respect of the thirteen agricultural properties and one tractor-trailer against Pandu Rangappa and his other three half-brothers and one Meenakshamma wife of Thimmanna.

2. The parties shall be referred to by their names instead of their ranking for the sake of convenience. Brief facts:

3. It is the case of Dodda Rangappa that he was the only son of Patel Rangappa and his wife--Chikkamma. He stated that his father Patel Rangappa, without the knowledge and consent of Chikkamma, had married another lady called Sannamma, through whom, Patel Rangappa had four children namely defendants 1 to 4. He stated that this marriage was void and after the death of his mother--Chikkamma, his half-brothers were joint in possession of the suit schedule properties and Sanna Rangappa--the last son of Patel Rangappa through Sannamma was managing the entire affairs of the family. He stated that initially defendant No.1/Pandu Rangappa was managing the properties of the family, but subsequently, he was addicted to bad habits and this resulted in Dodda Rangappa demanding a share.

4. He stated that his demand was however refused and despite many attempts in that regard, there was no partition. He stated that when he verified the revenue records in order to file a suit, he became aware that, all the revenue records pertaining to item Nos.1 to 13 had been transferred in favour of Sanna Rangappa and the said entries were without any basis. He, therefore, sought for declaration that he was entitled to half a share in the suit properties and also sought for partition and separate possession of this half share.

5. Pandu Rangappa and his brothers entered appearance and contested the suit by filing written statement. They stated that item Nos.12 and 13 were purchased by Kuri Chikkappa in the name of their father--Patel Rangappa about fifty years ago and Patel Rangappa was only a nominal owner and they did not belong to their family. He also set up a plea that Dodda Rangappa's father and his brothers had partitioned the properties under the registered partition deed and even in the partition deed, item Nos.12 and 13 had not been included. It was stated that the revenue entries were mutated in the name of Sanna Rangappa on the basis of inheritance, but, item Nos.12 and 13 continued to stand in the name of Patel Rangappa. It was stated that neither N.B.Dodda Rangappa nor his brothers had any right over item Nos.12 and 13.

6. It was also stated that the contention of Dodda Rangappa that he was the child born to Patel Rangappa and Chikkamma was incorrect and the further averment that his father had married another lady called Sannamma was also false. It was stated that Patel Rangappa had married only one lady Sannamma and had not married any other lady called Chikkamma. It was stated that Dodda Rangappa was the first son of Sannamma and defendants 1 to 4 were other sons of Sannamma. It was stated that genealogical tree produced was false and cannot be accepted.

7. A further plea was also taken that on the demand of Dodda Rangappa, the suit schedule

properties had been partitioned orally and Dodda Rangappa had already taken his 1/6th share. It was stated that this oral partition had taken place about twenty years ago. It was also stated that in case the Court came to the conclusion that Dodda Rangappa was entitled to any share, he would be entitled to only 1/6th share in all the suit schedule properties, except Item Nos.12 to 14.

8. On the basis of the pleadings, the Trial Court framed seven issues.

9. Dodda Rangappa examined himself as PW-1 and got two other witnesses examined on behalf of plaintiffs. He also got fifty documents admitted in evidence and marked them as exhibits.

10. On the other hand, Sanna Rangappa--defendant No.4 was examined as DW-1 and got twelve documents admitted in evidence and marked them as exhibits.

11. The Trial Court, on assessment of the evidence on record, came to the conclusion that Dodda Rangappa had proved that he and defendants had constituted a joint family and that suit item Nos.12 to 14 properties were also the joint family properties. It also held that Dodda Rangappa had proved that the defendants were the children born to his father out of a void marriage with Sannamma. As a consequence, the Trial Court held that Dodda Rangappa established that he was entitled to half a share in the suit properties.

12. The Trial Court also held that the defendants had failed to establish that there had been an oral partition in the family about twenty years ago and 1/6th share had been given to Dodda Rangappa in all the suit properties, except item Nos.12 to 14. It also held that defendants had failed to establish that item No.14 was a self- acquired property of defendant No.4. The Trial court accordingly decreed the suit and held that Dodda Rangappa was entitled to half share in all the suit properties, i.e., item Nos.1 to 14.

13. Defendants i.e., the persons who were held to be the sons of Patel Rangappa through the second wife-- Sannamma, are in appeal.

14. The learned counsel for Patel Rangappa and his brothers contended that the decree of the Trial court granting half a share in all the suit properties was wholly illegal. He submitted that even according to the cause- title, Dodda Rangappa was stated to be sixty years old as on 19.06.2002 i.e., when the suit was instituted. This would therefore mean that his father--Patel Rangappa had married Chikkamma prior to 1942 i.e., before the Hindu Marriage Act, 1955 (for short 'the Act / 1955 Act') was enacted.

15. He also submitted that even according to Dodda Rangappa, Pandu Rangappa--the first son of the alleged second wife Sannamma was aged about fifty-two years and this would also indicate that Pandu Rangappa--the first son through Sannamma was born in the year 1950 and the implication of this fact was that the alleged marriage of his father Patel Rangappa with Sannamma was also prior to 1955 i.e., the year in which the Hindu Marriage Act was enacted. He submitted that both the marriages of Patel Rangappa even according to Dodda Rangappa had been held prior to coming into force of the Hindu Marriage Act and since prior to the enactment, there was no statutory bar, for a

Hindu male to have more than one wife, it could not be contended that the alleged marriage of Patel Rangappa with Sannamma was void. He submitted that this argument was being advanced on the assumption that the averments made in the plaint were true, though that they were in fact not true.

16. He submitted that even if the submission of the Dodda Rangappa was accepted, by virtue of the fact that both the marriages had occurred prior to 1955, that would not render the second marriage void, as there was no statute prohibiting the marriage of a Hindu male with more than one wife. He submitted that as a consequence, since both marriages were valid, the children born to them would be entitled to succeed to the properties in equal shares and there was no question of any of the children of Patel Rangappa being illegitimate.

17. The learned counsel further submitted that the legitimacy of the children was only on the basis that the marriage between a man and woman was void or voidable. If, at a given point of time, the marriage of a Hindu male with a female was never considered illegal, the question of contending that the children born out of the second marriage or multiple marriages were illegitimate, would never arise.

18. He submitted that the legitimacy of the children was on the premise that they were born out of a marriage which was not considered as a marriage in the eye of law. He submitted that since prior to 1955, a Hindu male could have multiple wives, the children born through such multiple wives would have to be considered legitimate. He submitted that the Trial Court, ignoring this vital fact, has wrongly proceeded on the assumption that the marriage of Patel Rangappa with Sannamma was void and therefore, the children born of this void marriage were ineligible for equal shares. He therefore submitted that the suit was required to be decreed and equal shares have to be granted even if the plea set up by the defendants were unacceptable or had not been established before the Trial Court.

19. Learned counsel, Smt.Sruti Chaganti, appearing for Dodda Rangappa, on the other hand, contended that the judgment of the Trial Court could not be found fault with at all. She submitted that since the question of import of sub-section (3) of Section 16 of the Act had been referred to a Larger Bench of the Hon'ble Supreme Court in Revana siddappa and another vs. Mallikarjun and others, (2011) 11 SCC 1, the appeal would have to await the decision of the Hon'ble Supreme Court.

20. She also placed reliance on the judgment rendered in Jinia Keotin and others vs. Kumar Sitarama Manjhi and others, (2003) 1 SCC 730, to contend that the children born out of the void or voidable marriage were not entitled to claim inheritance in the ancestral coparcenary property but were entitled to claim inheritance only in the property of parents.

21. She also sought to place reliance on the decision rendered in Bharatha Matha and another vs. R.Vijaya Renganathan and others, (2010) 11 SCC 483, to contend that the children born out of the void or voidable marriage, can only claim share in the self- acquired properties of the parents but cannot claim inheritance in ancestral coparcenary properties.

22. According to her, since the suit schedule properties were admittedly ancestral properties and it had been established that Patel Rangappa had married Sannamma during the subsistence of his marriage with Chikkamma, the defendants were entitled to succeed only to the share of Patel Rangappa and they could make no claim over the ancestral properties as such.

23. She also sought to contend that it was not uncommon for the properties to be divided on the basis of the number of wives or on the basis of the sons i.e., Patni bhaga or Putra bhaga under the traditional Hindu Law and custom. She stated that it was an accepted practice in southern countries to divide the properties in equal shares according to their wives and thereafter divide the same among their sons and this custom should therefore supersede the general law.

24. She relied upon "A Treatise on the Hindoo Law of Inheritance" by Standish Grove Grady, Barrister-at-Law, and also " 'Hindu Law', principally with reference to such portion of it as concern the Administration of Justice in the King's Court in India" by Sir Thomas Strange, Late Chief Justice of Madras, to contend that there was this concept of Patni bhaga and Putra bhaga, i.e., division according to the wives and division according to the sons. She contended that as per these rules, the custom would govern and not the law and since, it was the custom to divide the properties on the basis of number of wives, the partition ordered by the Trial Court could not be found fault with.

25. Having heard the learned counsel for the parties, the points that arise for consideration in this appeal are as to whether the Trial Court was justified in decreeing the suit by allotting half share to Dodda Rangappa in all the suit schedule properties on the premise that he was born out of a valid marriage between his father and Chikkamma or in the alternative, whether the defendants, being the children born out of the second marriage of Patel Rangappa with Sannamma, were entitled to equal share in all the suit schedule properties.

26. At the outset, a delineation of the provisions of the Hindu Marriage Act could be useful for the present case.

27. The Hindu Marriage Act, 1955 came into force on 18th May 1955 and this Act was made applicable to any person who was a Hindu by religion in any of its forms or developments, including a Virashaiva, a Lingayat or a follower of the Brahmo, Prarthana or Arya Samaj. It was also made applicable to any person who is a Buddhist, Jaina or Sikh by religion and it was also made applicable to any other person domiciled in the territories to which the Act extends and who was not a Muslim, Christian, Parsi or Jew by religion.

28. The explanation to Section 2 also makes it clear that any child, legitimate or illegitimate, both of whose parents are Hindus, Buddhists, Jains or Sikhs by religion would be Hindus. Similarly, any child, legitimate or illegitimate, one of whose parents is a Hindu, Buddhist, Jaina or Sikh by religion and who is brought up as a member of the tribe, community, group or family to which such parent belongs or belonged; and any person who is a convert or re-convert to the Hindu, Buddhist, Jaina or Sikh religion, the Act would also be applicable to them.

29. Section 4 of the Act declares that any text rule or interpretation of Hindu law or any custom or usage as part of that law in force immediately before the commencement of the Act would cease to have effect with respect to any matter for which provision is made in the Act and any other law in force immediately before the commencement of the Act shall cease to have effect insofar as it was inconsistent with any of the provisions contained in the Act.

30. It cannot be in dispute that as the Hindu Marriage Act came into force with effect from 18.05.1955, the provisions of this Act cannot be made applicable to any marriage which had been contracted prior to this enactment.

31. It is to be noticed that it is only from 18.05.1955, that there existed a statute which prescribed conditions for the solemnization of a marriage between two Hindus and also the ceremonies for Hindu marriage and for registration of Hindu marriages.

32. Sections 11 and 12 of the Act deals with marriages, which are void marriages and voidable marriages.

33. Section 111 of the Act, in fact, categorically states that only a marriage solemnised after the commencement of the Act shall be null and void if a petition is presented by either party thereto against the other party for a declaration that the marriage was a nullity, if it contravened any one of the conditions specified in clauses (i), (iv) and (v) of Section 5 of the Act.

34. Sub-clause (i) of Section 52 of the Act stipulates a condition that for a marriage to be solemnised between

11. Void marriages.--Any marriage solemnised after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto against the other party, be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of section 5.

5. Conditions for a Hindu marriage.--A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:--

(i) neither party has a spouse living at the time of the marriage;

(ii) at the time of the marriage, neither party--

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or



(c) has been subject to recurrent attacks of insanity;

(iii) the bridegroom has completed the age of twenty-one years and the bride, the age of eighteen years at the time of the marriage;

any two Hindus, it was necessary that neither party had a spouse living at the time of the marriage.

35. Sub-clause (iv) of Section 5 of the Act also makes it a condition that in order for a marriage to be valid marriage, the parties to the marriage should not be within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two.

36. Sub-clause (v) of Section 5 of the Act, the condition imposed is that the parties are not sapindas of each other unless the custom or usage governing each of them permits of a marriage between the two.

37. Thus, marriage would be void only if the above three conditions are violated, i.e., if at the time of the marriage, neither of the parties had an existing spouse,

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two; if they were not within the prohibited degrees of relationship or they were not sapindas.

38. This concept of a void or avoidable marriage came into being only on the enactment of the 1955 Act. Under the traditional Hindu law which existed before the 1955 Act, there was no such concept of a void or voidable marriage. Traditionally, there were approved or unapproved forms of marriage, but merely because the marriage was under an unapproved form, that did not render the marriage void or voidable. It is therefore clear that a marriage, be it the first marriage or a second marriage was never a void marriage.

39. It is in this backdrop, the effect of the 1955 Act on a marriage which was solemnised before the 1955 Act came into force will have to be examined.

40. Section 11 of the Act pointedly states that any marriage solemnised after the commencement of the 1955 Act would be considered null and void only if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of Section 5 of the Act. The use of the expression "after the commencement of the Act" leaves no room for doubt that the concept of a void marriage can be applied only to a marriage solemnised after the 1955 Act came into force and there can be no concept of a void marriage in respect of a marriage which had been solemnised before the 1955 Act came into force.

41. However, in respect of Section 12 of the Act which deals with voidable marriages, the legislature has clearly specified that any marriage solemnised, whether before or after the commencement of the Act, can be annulled by a decree of nullity on the four grounds specified under Clauses (a) to (d) of Section 12. Thus, the law seeks to make a clear distinction in respect of marriages conducted before the 1955 Act and in respect of marriages conducted after the 1955 Act in relation to void and voidable marriages.

42. It makes it clear that the grounds for declaring a marriage to be void would be available only to those marriages which are solemnised after the 1955 Act. It also makes it clear that the grounds to annul a marriage by a decree of nullity in respect of a voidable marriage would be available to the marriages which were solemnised both before the 1955 Act came into force and also after the 1955 Act came into force.

43. Thus, in law, a marriage can be annulled by a decree of nullity if it was a voidable marriage solemnised even before the 1955 Act came into force, while a marriage which was void cannot be declared as void if it had been solemnised before the 1955 Act had come into force. In essence, a marriage which was considered as void after the 1955 Act came into force would not be considered as void if it had been solemnised before the 1955 Act came into force.

44. For the purpose of this case, it will have to be ascertained as to whether the plaintiff--Dodda Rangappa had established that the marriage of his father Patel Rangappa with Sannamma was void, because he had a living spouse--Chikkamma at that point in time. This is assuming, for the sake of argument, that the contention that there was a second marriage was true.

45. It has to be stated here that Dodda Rangappa as stated above instituted the suit in the year 2002. He described himself as a sixty years old in the cause-title. This would mean that his father Patel Rangappa must have got married to Chikkamma prior to 1942. He also described defendant No.1--Pandu Rangappa as a fifty- two years old. This would also mean that Pandu Rangappa was born in 1950 and this would in turn mean that the second marriage of Patel Rangappa with Sannamma was also prior to 1950. It was thus the admitted case of Dodda Rangappa that the marriage between his father and Chikkamma and also the second marriage with Sannamma had occurred prior to the coming into force of the 1955 Act. If this is the admitted position, by virtue of the expression "after the commencement of this Act" in Section 11 of the Act, the question of considering the second marriage as void and stipulated in the 1955 Act would not arise at all.

46. It is to be restated here that prior to the commencement of 1955 Act, there was no law prohibiting a Hindu male from having more than one wife and it is only by virtue of Section 5(i) of the 1955 Act, a statutory bar was created for a Hindu to contract a second marriage if s/he had a spouse living at the time of the second marriage. The consequence of this would be that the marriage of Patel Rangappa with Sannamma, even if it is accepted to be true, for the sake of argument, would not render the second marriage void and in law it would be a valid marriage.

47. Learned counsel for Dodda Rangappa however contended that there was no issue regarding the period in which the second marriage had occurred and therefore, this would be a fit case for

remanding the matter so that it could be ascertained as to whether the marriage was a void marriage or not.

48. It has to be stated here that if there is any doubt about this position, may be the matter could be remanded. However, in the light of the specific description of Dodda Rangappa being sixty years old and Pandu Rangappa as fifty-two years old as on 2002, it is obvious that both the marriages could have occurred only prior to 1952, when there was no bar for marrying more than one wife.

49. In this view of the matter, in my view, the request for remanding the matter is not justified and deserves to be rejected.

50. The argument that the question of import of Section 16 of the Act was pending consideration before the Larger Bench of the Hon'ble Supreme Court would also have no bearing to this case. This is because Section 16 of the Act, as originally enacted, reads as follows:

"16. Where a decree of nullity is granted in respect of any marriage under section 11 and section 12, any child begotten or conceived before the decree is made who would have been the legitimate child of the parties to the marriage if it had been dissolved instead of having been declared null and void or annulled by a decree of nullity shall be deemed to be their legitimate child notwithstanding the decree of nullity:

Provided that nothing contained in this section shall be construed as conferring upon any child of a marriage which is declared null and void or annulled by a decree of nullity any rights in or to the property of any person other than the parents in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

51. A reading of this provision would indicate that Section 16 of the Act was enacted to provide for a situation where a child had been begotten or conceived before the decree of nullity had been passed under Section 11 or Section 12 of the Act.

52. As noticed above, Section 11 of the Act relating to void marriages would apply only in respect of marriages which had been solemnised after the 1955 Act came into force and since in this case both the marriages had been contracted before the 1955 Act came into force, Section 16 would have no application at all.

53. Section 16 of the Act, as it originally stood, basically stated that any child, begotten or conceived before the decree of nullity was made or annulling of the marriage, should be deemed to be a legitimate child even if the marriage was subsequently declared as null and void or was annulled by a decree of nullity.

54. The law basically conferred a deemed legitimacy on a child which had been begotten or conceived before the decree was passed under Section 11 of the Act that the marriage was void or

was annulled by a decree of nullity under Section 12 of the Act.

55. The proviso to Section 16 of the Act, as it was originally enacted, did circumscribe the deemed legitimacy with the condition that the child who is deemed to be legitimate would not be entitled to claim any right in respect of the property of any person other than their parents.

56. Section 16 of the Act was thereafter substituted in its entirety in the year 1976 and the same reads as follows:

"16. Legitimacy of children of void and voidable marriages.--(1) Notwithstanding that a marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

57. The substituted Section 16(1) of the Act starts with a non-obstante clause and declares that even if a marriage is declared as null and void under Section 11, any child of such marriage would be legitimate irrespective of whether such child had been born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976). It also declares that the child would be legitimate irrespective of whether a decree of nullity was granted or whether a marriage was declared to be void under the Act.

58. Thus, as already explained above, Section 11 of the Act relating to void marriages would be attracted only in respect of marriages solemnised after the commencement of the 1955 Act and therefore, this amendment of the year 1976 could also be of no consequence as far as the present case is concerned.

59. Sub-section (3) of Section 16 of the Act is a reproduction of the originally enacted proviso to Section 16 of the Act. It declares that the deemed legitimacy of a child who was born out of the

marriage which was void under Section 11 or voidable under Section 12 of the Act, would not entitle the child to make a claim in respect of the properties of any person other than its parents. Since, in the present case, Section 16 of the Act would have no application by virtue of the fact that the condition stipulated was that the second marriage of Patel Rangappa was void, the question of Section 16 being attracted would never arise at all.

60. It has to be noticed here that admittedly, it was the specific case of Dodda Rangappa that the second marriage of his father was void and therefore the question of considering it as being a voidable marriage as contemplated under Section 12 of the Act would not arise.

61. As a result of the above discussion, it is clear that assuming Patel Rangappa had married twice, since both the marriages had been solemnised prior to 1955, they would have to be held as valid marriages and the children born out of such marriages would have to be considered as his legitimate children for the purpose of succession.

62. In the light of the discussion above, the inescapable conclusion is that all the children of Patel Rangappa, whether born through his first wife-- Chikkamma or the second wife--Sannamma, would be entitled to claim an equal share in all the properties left behind by Patel Rangappa.

63. The decree of the Trial Court, which is based solely on the premise that the second marriage was void, is fundamentally flawed and cannot be sustained.

64. The plea of the defendants that Dodda Rangappa was actually the eldest son of Sannamma need not be considered since even if the plea of Dodda Rangappa that his father's second marriage with Sannamma was void is accepted, even then, all his sons from both the marriages would be entitled to an equal share by virtue of the fact that both the marriages having been solemnised before the 1955 Act came into force would be valid marriages and cannot be considered as a void marriage.

65. In the result, the suit of Dodda Rangappa had to be partly decreed holding that he would be entitled to only 1/6th share and not half a share, as granted by the Trial Court.

66. As far as the argument that item Nos.12 to 14 were not the joint family properties but were the self-acquired properties of Patel Rangappa and that he was only a name-lender, the same would have no relevance, since it is admitted that the properties were purchased by Patel Rangappa under the sale deed dated 18.08.1951 and since he had purchased these properties in his name, all his children, on his death, would have an equal share.

67. As far as item No.14 is concerned, i.e., the tractor trailer, admittedly, even according to the defendants, all of them had signed as guarantors / co-obligants and it is therefore clear that item No.14 was also considered as a joint family property. As a consequence, even in respect of this property, Dodda Rangappa would have 1/6th share and all the defendants would also have a 1/6th share each.

68. Consequently, the appeal of Pandu Rangappa and others i.e., the defendants is allowed in part and it is held that both Dodda Rangappa and his half-brothers (defendants) would each be entitled to 1/6th share in all the suit schedule properties.

Sd/-

JUDGE RK CT:SN